



United States
Attorney's Office
Western District of Oklahoma



Lawton-Area Trio Sentenced to Serve More Than 12 Years Collectively in Federal Prison for Health Care Fraud

Tuesday, April 22, 2025

For Immediate Release

U.S. Attorney's Office, Western District of
Oklahoma

Defendants Ordered to Pay Nearly \$2.7 Million in Restitution Collectively

OKLAHOMA CITY – **JIMMIE MATHEWS**, 41, **NATHAN MATHEWS**, 42, and **AMBER DELGER**, 55, all of the Lawton area, have been sentenced for their roles in a conspiracy to commit health care fraud, announced U.S. Attorney Robert J. Troester.

The defendants were each charged in May 2024, with Delger being charged by Information with conspiring to commit health care fraud, and both Jimmie and Nathan charged by a 16-count federal grand jury Indictment with conspiring to commit health care fraud and fifteen counts of health care fraud. Beginning in 2016, Nathan owned Emerald Lane Therapy Services (Emerald Lane) in Lawton, a massage therapy provider. Delger was a subsequent co-owner of the company. Nathan and Jimmie also owned a separate massage therapy provider, Stars & Stripes Therapy (Stars & Stripes), which opened its doors in Lawton in January 2020. Both businesses purportedly treated TRICARE beneficiaries, submitted claims to the Defense Health Agency (DHA), and received payments from DHA for those services.

According to public record, beginning in January 2018, the defendants conspired together to submit false and fraudulent claims to TRICARE for services that were never rendered. Court documents allege that after TRICARE beneficiaries visited either of the businesses, the defendants would schedule multiple appointments for the beneficiaries many months in advance. If the beneficiary couldn't make the appointments, or stopped coming altogether, the defendants would nonetheless continue to bill TRICARE as if the beneficiaries had received care. Additionally, Emerald Lane billed TRICARE using the National Provider Identity (NPI) number of an occupational therapist long after the therapist had stopped working for the business. In total, Emerald Lane and Stars & Stripes billed more than \$7 million to TRICARE and received nearly \$3 million in reimbursement.

In October 2024, Jimmie and Nathan pleaded guilty to conspiring to commit health care fraud. Previously, on June 17, 2024, Delger pleaded guilty to the same.

“Through their fraudulent conduct, these defendants exploited programs intended to provide critical benefits to our nation’s military, veterans, and their families” said U.S. Attorney Robert J. Troester. “Through vigorous investigation and prosecution, we will continue to protect taxpayer funded institutions and ensure that TRICARE dollars are protected and properly allocated to help those who serve.”

“The Defense Criminal Investigative Service (DCIS) is committed to ensuring TRICARE, the U.S. Military healthcare program, is not subjected to fraudulent schemes that expose beneficiaries to harm and waste valuable tax dollars,” said Acting Special Agent in Charge Chad Gosch of the Department of Defense Office of Inspector General, DCIS Southwest Field Office. “These sentencing demonstrate our tireless pursuit to investigate individuals that seek to enrich themselves at the expense of this valuable program.”

Last week, U.S. District Judge Jodi W. Dishman sentenced both Nathan and Jimmie. Nathan was sentenced to serve 87 months in federal prison, followed by two years of supervised release, and ordered to pay \$1,410,255.66 in restitution. Jimmie was sentenced to serve 42 months in federal prison, followed by three years of supervised release, and ordered to pay \$632,026.43 in restitution. Delger was previously sentenced on January 31, 2025, to serve 26 months in federal prison, followed by two years of supervised release, and ordered to pay \$653,269.00. In announcing the sentences, Judge Dishman described the fraud scheme as egregious and far reaching in its scope, duration, and impact. Judge Dishman further noted that the public needs to know that health care fraud is not acceptable, will not be tolerated, and will result in prosecution and punishment.

This case is the result of an investigation by the Defense Criminal Investigative Service of the United States Department of Defense. Assistant U.S. Attorney D.H. Dilbeck prosecuted the case.

Reference is made to public filings for additional information.

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